

Discovery of a Hidden Painting Treasure

Amedeo Modigliani's

Sitting Nude with Crossed Hands, (c.) 1917



Subject - Alice Prin - age 16

Would become known as

"Kiki de Montparnasse" in 1922

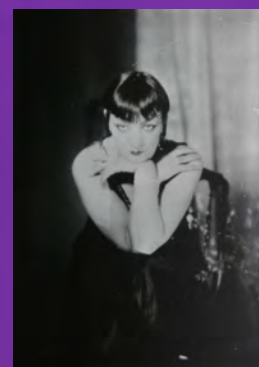
Kiki, "Queen of Montparnasse" in 1929
throughout was THE "Essential Interlocutor"
for two generations of Modi's Peers

Long-form Provenance

Art Conservation

Art History

Art Confiscation in Czechoslovakia - 1918-1989



Quote was Kiki's Memoirs - 1930 English Edition - Chapter XV Montparnasse Life 1917 - Speaking about Restaurant "Chez Rosalie's" {Lilliputian Historical Site} - only four tables where Alice worked for several months - 1914-15 Quote: "The customer who got her goat the most of all was Modigliani. All he did was growl; he used to make me shiver from head to foot. But maybe he wasn't so good looking!"

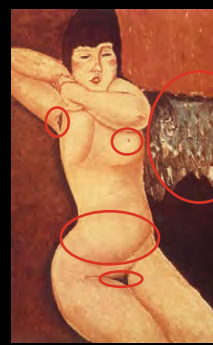
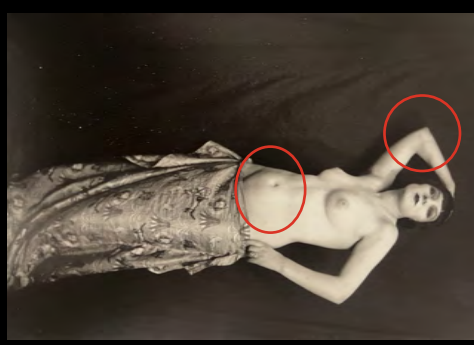
Original Painting - Alice Ernestine Prin at age 16.
Amedeo Modigliani of course did not know that the
subject of his painting would, at age 28 be officially
crowned Kiki, "Queen of Montparnasse"

Artist Rendition - below depicts how Modigliani's
painting will appear after cleaning and minor
restoration. The painting, oil on canvas, below was
created using the same color palate as Modigliani.



Two Paintings AU - 1917 - Recently attributed to model/muse Alice Prin - 1917 - more on pages
"Lying Nude with Joined Hands" (c.) 1917 - Ceroni & "Unnamed" (c.) 1917

Below is an image of Modigliani's "Lying Nude with Hands Joined" (c.) 1917. The Unnamed painting to the right is also by Modigliani and obviously the same model. After conducting a full evaluation of the available materials on the painting it is highly likely the subject of both these paintings was Modigliani's favorite musel, Alice Prin. Convincing are features around the face, nose, mouth, eyebrows, bob haircut. These elements eerily consistent with Pacific Arts Collection's painting done of Alice in 1917. Also similar is the title of our painting, "Sitting Nude with Crossed Hands" that matches an entry on the Berthe Weill 1917 exhibition. Further similarities in both works are the fleshy arms, breasts, hips and pubic hair. Both are signed in black, bottom right. Worth note the presence of the work in Ceroni means the publisher, Ambrogio Ceroni reviewed the painting, its provenance and had conversations and meetings with the painting's owner.



1928



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This Provenance Report is considered *atypical* (irregular or unusual), as this painting itself is considered *atypical* of Amedeo Modigliani. The portraits of Diego Rivera (1914 & 1916) are not the only *atypical* paintings Modigliani did. See Exhibit 8 in the Clues Report and supporting comments in Exhibit-11. The following provenance discussions revolve around the 74+ years of the Czechoslovakian governmental changes of political systems from 1918 to 1992. The discussions cover the effects on valuable fine art, property possession/controls, and the history of this painting having been sequestered against confiscation for 76 years (1924 – 2000). Finally, being revealed publicly from 2000 to the present. This report will focus on the *atypical* creation of the painting by Modigliani and his short and chaotic lifestyle leading to issues of poor documentation, sporadic sales activity, inventory records, health, and early death.

* The word *atypical* most commonly refers to something that is irregular or unusual and is used to describe a great many things, from people to objects. See Meryle Secrest in Item 8 discussion and Exhibit-11 of the Authentication Report for details regarding Modigliani's styles and atypical work.

** Original notarized copy, revised copy with affidavits attached in Item 7 October 1, 2019,

Provenance Summary

1. The painting was bought in 1924 in Paris by Professor Josef Klement, a Czech Doctor, teacher, and art collector.
2. At that time, he lived with his family in Vienna, later in Prague.
3. His son Ladislav, born on January 26, 1922, was 2 years old at that time.
4. In 1940, on the 18th birthday of Ladislav, he received the painting as a gift from his father. Ladislav began his studies at the University of Prague and later became a teacher, just like his father.
5. Ladislav Klement had 2 sons with his wife Hedwig (* 1925/10/08- 2009/12/27); Martin and Ladislav (Jr.). Ladislav (Sr.) died on July 31, 1979. His wife fulfilled his last will and handed over on December 24, 1979, the painting to their son Ladislav Jr., born on January 11, 1952.
6. Ladislav Klement Jr. became a doctor and then worked in the hospital "Všeobecná fakultní nemocnice v Praze".
7. The painting was always kept in the family safe.
8. With the purchase agreement dated January 15, 2000, Ladislav Klement Jr. sold the painting to Mr. Saso Kuzmanovski.
9. On June 15, in the same year Ladislav Klement Jr. tragically died in a traffic accident in Italy.
10. The painting is currently kept in the vault of the Komerční banka, pobočka Václavské nám in Prague;

[Video of Painting in Bank Vault at Komerční Banka in Prague](#)

Note: The updated Closing Investigative Report and notarized affidavit by the family retired lawyer (Mr. Jaroslav Vecera confirms that the original 1924 purchase by Professor Josef Klement was purchased from the dealer Leopold Zborowski and further supports that the painting was in the inventory along with other paintings at the Berthe Weill Gallery on December 3, 1917. Mr. Vecera, was also a respected lawyer for a government minister for many years. His resume is attached, and further details are available upon request. Extensive interviews were done with Mr. Vecera and other Klement family members. These efforts and their details are documented in a notarized affidavit attached.

Before we get into the atypical information about this provenance, please consider the historical environment (national and local) that this painting was chartered to survive within. It has always been kept in what is now known as the Czech Republic and was sequestered from possible seizure and confiscation for 76 years (1924-2000).

Although restitution laws initially slowed economic reform and privatization, they in fact created a sense that some justice had been achieved to compensate for the inexorable property confiscations and nationalization programs implemented by the communist Czechoslovak government. The restitution laws also reintroduced the Czechs to concepts of private ownership and other market-oriented legal principles and practices.

Privatization & Restitution Laws

The Czech privatization plan has been controversial. Essentially, it is a three-step process. "The first step was the re-privatization [restitution] of shops and enterprises to their original owners; the second step was the privatization of small industries; and the final step involved selling or breaking up the large state conglomerates". The supporters of this three-step process envisioned a rapid privatization process that would radically transform the Czech economy similar to the Polish "shock treatment economics" program in 1989. As one top governmental official remarked, "You can't understand the scope of the challenge and opportunity until you realize that here, we don't own anything other than our toothbrushes". Three main restitution laws were enacted in the years immediately following the Velvet Revolution. These laws are as follows:

1. **The Small Restitution Law, "Act on Relieving the Consequences of Certain Property Injuries", and**
2. **The Large Restitution Law, "Extra-Judicial Act", and**
3. **The Land Law, "Adjustment of Ownership Rights of Land and Other Agricultural Property"**

Beginning in 1989 the speed of the privatization process depended upon how issues involving restitution were handled. Czechoslovakia was the first former communist country to enact such a sweeping law on restitution of property that was either confiscated or nationalized by the former communist regime. If the Czech Republic proves its sincerity about upholding property rights, foreigners may be encouraged to invest in or buy the remaining land and industry. Foreign investment is necessary to speed up the economic growth of this poor, formerly communist country. This began and continues to progress today.

A Painting of "Kiki Montparnasse" by Amedeo Modigliani – 1917 Sequestered For 76 Years

With all the governmental change history of the Czech Republic after 1918, it stands to reason why the Professor Josef Klement family kept this painting by Amedeo Modigliani secret for 76 years, except for family and very close friends. That is why it was never exhibited after 1924, never registered with any government agency, and not shown publicly. In 1931 the painting was used as collateral for a short-term 30-day loan at the then well-known Venera Auction Hall in Brno. The amount of the loan was reported to be KC 567,000 and was paid back after a period of one month. The painting continued to be sequestered.

In 1946 the world-famous legendary Czechoslovakian restoration expert, [Professor Bohuslav Slansky](#) (1900-1980) was asked to do restoration work on the painting. Mr. Slansky looked at the painting and categorically stated that **"it was an exquisite work of a great world-renowned painter"**. Professor Slansky considered it an honor that he could do restoration work on the painting. It can be safely assumed from the above cultural history that Professor Slansky did not want to reveal in his statements the artist at that time in accordance with the wishes of Professor Klement. This was to protect the painting from confiscation which would have led to Nationalization of the painting without much recourse for restitution. The background of Professor Slansky and his contributions to the restoration world is well known and an overview is attached to this report in *Exhibit-4*. In 1950, Professor Slansky began writing books about his techniques and materials used in restoration. Professor Slansky passed away in 1980 in the Castle District (Hradcany) of Prague.

Several of the techniques and materials used by Professor Slansky have been discovered and documented in the extensive testing of this painting by Jiri Lauterkranc (student/protégé of Dr. Slansky) in December 2021 at the Prague testing facility of InsightART. Two additional independent testing facilities in Italy (ARSMensvrae-2011 and Art-Test-2014) also confirmed the restoration locations on the painting, confirmed the high-level quality of the work, and did extensive additional testing. These additional testing reports were extensive. All the testing reports are included with this report and each one has a testing summary at the beginning.

Art Conservation and Art History in Czechoslovakia (1918 – 1989)

On October 28, 1918, in the aftermath of the First World War, Czechoslovakia became a modern nation-state and enjoyed twenty years of relative peace and prosperity. In 1938, in the face of Nazi expansion, Chamberlain, Daladier, Hitler, and Mussolini met in Munich and formulated the infamous Munich Agreement. This agreement allowed Hitler to annex the German speaking Sudetenland region of Czechoslovakia. Soon thereafter, the French and British informed Czechoslovakia that if they acted alone in resisting Hitler, such resistance would be considered a provocation of war. Czechoslovakia remained compliant, and less than six months after the Munich agreement, Nazi troops marched on Prague.

In February 1945 before the end of the Second World War in Europe (VE-Day, May 8, 1945), the leaders of the United States, Great Britain, France, and the Soviet Union met in Yalta to determine the fate of postwar Europe. Czechoslovakia was one of the dividing points. The leaders decided that the Soviets would liberate Prague; consequently, Czechoslovakia fell under the Soviet sphere of influence, which ultimately led to the 1948 communist takeover of Czechoslovakia. From 1945 to 1948, the Czechoslovak (or Benes) government, acting within the scope of the 1920 Czechoslovak constitution, confiscated much of the land of the Sudeten Germans and Hungarian minority, who had collaborated or sympathized with the Nazis during the Second World War. Many of the large industries and businesses also were nationalized during these years.

In February 1948, Soviet-backed communists took over Czechoslovakia and started the mass confiscation of private property and nationalization of industry. The final result of the Communist takeover was that Czechoslovakia endured the most intensive and comprehensive private property confiscation and business and industry nationalization of any of the Soviet bloc countries, excluding the Soviet Union. The communist government gave little or no consideration for confiscated property.

Seizures were often carried out illegally, even under the laws passed by the communists. Owners of factories or farms were expelled from their houses on short notice, and sometimes sentenced at summary trials to hard labor, apparently for the sole crime of belonging to the "enemy class". Many of the other former Soviet bloc countries were able to maintain some level of private property and small businesses, whereas not even "mom-and-pop shops" remained in Czechoslovakia. This extensive property and industry nationalization put Czechoslovakia at a severe disadvantage for reform in comparison to other former Soviet-bloc countries that broke free from communism in the revolutions of 1989.

In her book, Mary Heimann, calls Czechoslovakia "... the state that failed..." It lasted for just seventy-four years during which it "... was federalized, centralized, dissolved and reconstituted..."; it experienced democracy, Fascism, Nazi occupation, Communism, Stalinism, Soviet occupation, Perestroika and democracy again. Situated right in the middle of Europe, this "... insecure zone in between Russia and Germany..." that "... does not trust politics or history..." jointly formed the cultural and intellectual milieu of what Kundera (1983) calls "...

European cultural legacy...". As Heimann states, "This was a place where it was not only possible, but normal, for a single person to have all the varied experiences of being born a subject of the Habsburg Empire; brought up with the ideals of Wilsonian democracy; come of age under Nazism; joined in the postwar quest for social equality; being indoctrinated with Stalinism; successively re-educated in the ways of reform and neo-conservative Communism; converted to free-market Capitalism; and, all along, stubbornly clung to old-fashioned, Romantic nationalism."

After the Velvet Revolution in November 1989, the first freely elected government of Czechoslovakia decided that to implement a free-market economy it was necessary to quickly transfer state-owned properties and enterprises into private hands. The newly elected political reformers believed that a free-market economy was based on private ownership of property, and they promptly began to explore means by which property could be shifted from state to private ownership. The new government saw the restitution of property to its original owners as a means not only to speed up the privatization process, but also a prerequisite for developing a free-market economy.'

However, after implementing restitution laws, the government realized that these laws had quite the opposite effect. Although restitution laws initially slowed economic reform and privatization, they in fact created a sense that some justice had been achieved to compensate for the inexorable property confiscations and nationalization programs implemented by the communist Czechoslovak government. The restitution laws also reintroduced the Czechs to concepts of private ownership and other market-oriented legal principles and practices had quite the opposite effect.

Provenance Notes:

Brno, Czech Republic – One of the documents issued, supporting the provenance of the subject painting of this report (see Exhibits), states that in 1931 at a “famous Venera AuctionHall” in Brno, Czech Republic, this painting was used as collateral for a short term (30-day) loan. We investigated this link and could not find information about the *Venera Auction Hall*. We did find that there was a well-known collector at that time named Frantisek Venera (1901-1979). Frantisek Venera was one of the largest collectors of art and an important personality in the art community of Brno. Frantisek Venera was an accountant and secretary of the *Group of Fine Artists in Brno*, an art protector in Brno, an art theorist, an editor and publisher, and a collector. Venera was also an advisor and provided art financial consulting.

In 1930 Brno had a large and active Jewish population and in 1928 the city of Brno opened the *Brno Exhibition Centre*, one of the largest exhibition centers in Europe. It established a tradition of large exhibitions and trade fairs held in Brno. Today it is expanding its development under a CZK 1 billion funding expansion program. In 1930 it would have been a magnet for Jewish artists and art support activities such as lending with artwork as collateral. The connection to the *Venera Auction Hall* could have been a general type of reference to Mr. Venera and the *Group of Fine Artists* (1930). Today there is a *Fine Art Group* in Brno (no relation) that does the advising and financial consulting services to the art community.

Restoration Work:

Professor Bohuslav Slansky categorically claimed that “*this painting is excellent work by a great worldwide artist*”, and he considered it a “*great honor*” to be able to do restoration work on this subject painting. In 1946 Professor Slansky was reluctant to identify the artist for concern over government seizure of the painting. The UV/X-Ray and other testing documents in the complete report show the areas of restoration. A separate section on the provenance illustrates the nature of comments by Professor Slansky. See Exhibit 4.

Investigation Reports:

It was decided early in the authentication and provenance research of the subject painting of this report to investigate details about the Klement family information and the Summary Provenance issued in October 2019. To do this we engaged the efforts of our investigator, Mr. Ludvik Krajci (resume attached) to pursue information about:

- a. The court filings of Expert Opinions by Marie Pospisilova, a registered expert on fine art reporting
- b. Current location and contacts for remaining Klement family members
- c. Current location and contact with retired family and government lawyer Jaroslav Vecera
- d. Documented interviews with individuals that had contact or worked with the present owner
- e. Notarized affidavits about the interviews
- f. Notarized affidavit from the Klement family lawyer
- g. Background information on Ladislav Klement and his hospital references/ experiences
- h. Business background information on Klement family members
- i. Court investigation for confirmation of the Will that transferred ownership of the painting from Ladislav Klement Sr to Ladislav Klement Jr. in 1979. This was not successful as court records were inconclusive

Notarized Affidavits were obtained to confirm the following

1. The painting was purchased in 1924 in Paris from the Modigliani dealer Leopold Zborowski who received it directly from Modigliani
2. The painting was reported to be included in the inventory of paintings at the December 3, 1917, exhibit at the Berthe Weill Gallery that was closed by the police until the nude paintings were removed (completed by the next day) and returned to Zborowski
3. The remaining members of the Klement family knew about the painting, on some occasions saw the painting, and were aware of the 2000 sale of the painting

Scientific Testing Notes

Three extensive testing services over a period of 10 years (2011-2021) with increasing technology and support have established without a doubt the techniques and materials of this painting to be that of Amedeo Modigliani including the signature (bone black on canvas) and the foundation as being lead white. Restoration techniques reviewed and work produced by the three testing services further supports that in 1946 the legendary restoration scientist Professor Bohuslav Slansky confirmed the art as being an “*excellent work by a great worldwide artist*” which subtly meant Modigliani. 2018 studies by curator Ireson and Fraquelli from the Tate Gallery in coordination with the Burlington Magazine produced an entire series of six articles which upon investigation (especially the Technique and Materials article) easily supports this as a Modigliani painting.

Berthe Weill Gallery

The Berthe Weill Gallery solo exhibit by Modigliani on December 3, 1917, plays a role in this report and in the provenance and authentication of this painting. This is clearly considered an “***atypical***” painting of Modigliani, and the questions are why, where, how, when, and who saw it. The attached notarized affidavits states that the subject painting of this report was at the Berthe Weill Gallery during the December 3, 1917, exhibition.

There is some controversy over how many paintings, nudes, and drawings were in the Berthe Weill Gallery.

For example:

1. Kenneth Wayne in his curated catalog titled “*Modigliani & The Artists of Montparnasse*” indicates that the Berthe Weill exhibition had thirty- two paintings and about thirty drawings. A poetry embellished brochure identified only four listed nudes (NU) and a total of thirty-two paintings (no drawings- but they were probably there).
2. Leopold Zborowski was known to supply a substantial inventory of his clients’ materials at exhibitions and at his home/studio. We do not know which paintings and drawings were shown or if there were other paintings stored in the gallery and not displayed.

2. Meryle Secrest in her book *“Modigliani A Life”* documents that when asked by the police to remove the nude from the window, Berthe volunteered *“there were lots more inside”*. Secrest goes on to write about *“one (or more) nudes in the window”* and that they were *“among thirty-seven works”* in the exhibit, *“including many portraits and drawings”*.
3. The chronology written for the 1917 period in the catalog *“Modigliani-The Primitivist Revolution”* (page 207) documenting the 2022 Modigliani exhibit at the Albertina Museum in Vienna, and edited by Marc Restellini, states that *“Thirty-two works are shown at the Berthe Weill Gallery, twenty of them nudes.”* That seems incorrect.
4. According to other authors, the gallery was closed, nudes were removed, and apparently the gallery reopened the next day and completed its exhibition run. In the Exhibits is a section about the Weill Gallery incident and an excerpt from the 1933 book *Pan Dans C’ceil* written by Berthe Weill (translated from French to English).
5. Jacques Lipchitz, one of Modigliani’s close friends and a sculptor stated in his 1954 book *Amedeo Modigliani*, that at the Berthe Weill exhibition *“to catch the eye of the public he (Zborowski) had placed in the window four of Modigliani’s nudes.”* He further goes on that *“it was the police who saw them first, and they made Zborowski take them out of the window.”* Later, Zborowski approached Lipchitz to purchase four of his nudes.
6. Pierre Sichel in his book *Modigliani* refers to a series of quotes from the sources about the Weill gallery exhibition and a subsequent conversation Zborowski had with Jacques Lipchitz about purchasing four nudes from the closed exhibition inventory of removed nudes.
7. The notarized affidavit by the Klement family lawyer, *Jaroslav Vecera*, states that the purchase of this painting in 1924 was from Leopold Zborowski who got it from Modigliani. He further stated in the affidavit that Ladislav Klement Jr. told him that the grandfather, Joseph Klement, told Ladislav Jr. that he did not know when the painting was painted, but that the painting was in the Berthe Weill Gallery during the December 3, 1917, exhibition and was retrieved by Zborowski along with other nude paintings. See Exhibits.
8. It seems plausible that there were more than thirty-two paintings and four nudes in the gallery inventory when the exhibition opened. Modigliani was very lackadaisical about keeping track of his work and Zborowski was not much better. While working with the Berthe Weill legacy, the author Marianne Le Morvan in her research discovered that there were no stock books or gallery archives kept after the death of Weill. Few other records have been found. Information confirms that it is plausible this painting was both *“atypical”* as a nude and not displayed along with the other nudes but may have been in the gallery inventory waiting.

Modigliani was well known for changing styles and experimenting. It appears from research that from his early days in Paris until late 1919, Modigliani painted up to forty different nudes in unique styles with the bulk of them in the 1917-1919 period. He was also known for painting what he “saw” vs what was physically in front of him. The question is why the subject nude painting of this report was so different? Zborowski probably did not want to promote it in addition to the “standard” nudes Modigliani was painting in the 1916-1917 period. Modigliani had done distinctive styles previously and even mixed-up styles in the period 1916-1917 (see Exhibit 9a and 9b). One, must remember that Modigliani painted all these nudes in an incredibly brief period of time – possibly as a quick-fix style change for sales. Zborowski pushed him to produce a lot of the nudes after interest was shown from the controversy at the Weill Gallery.

Fake Modigliani Art

Modigliani was known to be the most faked artist in history and has painted some of the most expensive nude paintings ever sold. We have tried to create a Modigliani research, review, and report about just this one painting that is really *“atypical”* of Modigliani and especially his “standard” nudes. One should also note that there was a flurry of counterfeited and faked nude paintings along with other Modigliani creations starting not too long after his death. See Exhibits for a list and display of faked Modigliani art.

There has never been a fake or counterfeit copy the subject painting of this report. Just the opposite – it has been under lock and key for 74 years and only revealed beginning after the 1989 “Velvet Revolution”. Initial opinions (mostly visual) discount it as not a Modigliani, regardless of proven technical evaluations. Most auction houses take the position that “*if it is not in the Ceroni catalog we will not consider it*”. But most of the only have “catalog reviewers” listed as “*specialists*” with little authority to do detailed research. This is a “*discovery*” project and is reasonably well explained in the analysis about the provenance and the Authentication report and exhibits 1-12 included.

When initially shown this painting, there is an immediate reaction by “*qualified*” experts” to discount it as not a Modigliani and resort to catalog reviews (Ceroni, Courtauld, MOMA, Marc Vaux Archives, Druet-Vizzavona Archive, etc.) looking for pictures and information to prove their opinion. But the actual proof is scientifically and operationally available to these “experts”.

The fact that the owners were not experienced or did not seem qualified to establish more detailed proof should not be discounted. In our research we have determined that multiple “*experts*” used very prejudicial and negative influences to discount the authenticity of this painting, to refuse offering detailed scholarly review or review the testing results offered. One claimed the signature was done in ink! The three independent scientific tests have proven that the signature was done with “bone black” paint used by Modigliani and was done when the painting was completed. See Addendum B, C and D.

The subject painting to this report is a fully authenticated Modigliani “atypical” painting of a sitting nude, fully vetted and documented on Provenance and style.

A Summary of Research Accomplishments & Milestones are:

1. Fully scientifically tested three times by the “best of the best” facilities in Rome, Florence, and Prague. Full testing reports and contacts attached.
2. Fully investigated for ownership and provenance including notarized affidavits of provenance details and confirmations.
3. Painting and style evaluations and information drawn from multiple sources of authenticity and authors including restoration work.
4. Review of “Expert Opinion” papers submitted to the court about this painting.
5. Extensive research on Modigliani myths about lifestyle and events.
6. Review of Modigliani certified paintings, drawings, and materials including listed and included fakes and counterfeits.
7. Interviews with previous individuals and family members involved in the period after 1989 who had contact with this painting and the owners.
8. Extensive reading and reviews of multiple independently authored books and catalogs dating as far back as 1928 including books by daughter Jean Modigliani (1958) and Berthe Weill (1933). See attached exhibit of publications utilized.
9. Full review and study of fakes and counterfeit reports including review of the full report on 2017 Genoa Exhibition fraud for Modigliani and Kisling fakes.
10. The Exhibits contain some recent articles about other “discovery” paintings including another Modigliani and a Van Gogh as well as some Van Gogh because of modern methods and studies.’ finally authenticated them.
11. Pacific Arts Collection is currently in negotiation to sell the Kiki to a European private collector. PAC will continue to entertain discussions for possible lending to have more time to restore and take on tour. With the new very likely discovery of the Kiki in the Ceroni, Patani and Lanthemann Catalogs. Kiki may turn out to be Modigliani's most famous sale of one of his Nude's. If so the value of the painting based on prior sales of his Nudes will be considerable. Nu couché, (“Reclining Nude”) recently sold at [Christie's](#) for \$152,000,000.

Long-form Provenance

Summary & Notes

This Authentication Report & Long-form Provenance Summary Discussion is extensive and full of circumstantial evidence, notarized affidavits, history, some professional limited opinions, and a 10+ year period of working with less than coordinated information sources. There are quotes and information from qualified researchers and authors, and many references to catalogs, publications, and the Modigliani myth vs. the Modigliani man. This discussion journey is going to take you to many places, show many facts, and illustrate qualified evidence. However, it should be noted that there are many qualified individuals such as curators and “experts” in this field that are more deeply involved with this artist. Some of them have 30+ years of their own research, rooms full of awards, strong opinions, and serious reputations invested in promoting and protecting those very sources of their “expertise”.

It is a challenge with some sources to obtain support for the uninformed or uninitiated individual that is working on learning and establishing some factual information for this “discovery” in the art world. During this process over seventeen books (mostly biographies) from qualified and respected authors like Meryle Secrest, Pierre Sichel, Jean Modigliani, Jacques Lipchitz, Jean Cocteau, Carol Mann, Jeffery Meyers, the Smithsonian Library, The series of Burlington Magazine articles by Ireson and Fraquelli and other researchers, and many more from the 1920’s to current including Berthe Weill (1933) have been read and information used in this report.

Pacific Arts Collection has had the pleasure of reviewing catalogs and their text from Douglas Hall, Marc Restellini, Christian Parisot, Mason Klein, Kluver & Martin (Kiki Montparnasse), Franco Russoli, Emily Braun, Kathleen Brunner, Werner Schmalenbach, etc. We have also acquired and reviewed 4-5 podcasts by the above authors, videos of paintings by Modigliani and Kisling, paintings, illustrations, and auction articles. We have researched material in major libraries in Washington DC, San Francisco, University Calif Berkeley, Prague National Library, Vienna, Zurich, Chicago, and New York. We have had the good fortune of seeing many Modigliani paintings in person and working with three testing facilities on the proof of the technical materials and scans of the painting (2011, 2014, 2021). All conclusively supporting this as a true Modigliani painting.

This is not some “discovery” painting found in a dumpster by a flea market or in some attic hidden without concern. It had been in one family for 70+ years and has had only two owners. The present owner does not have a deep formal background in fine art and neither did I until I began working on some Impressionist material in 1996 (see personal interview attached in exhibits). I have found the present owner to be seriously discounted with little respect by “elitists” in the trade.

We have had several unique and productive meetings with such people as Dr. Luciano Renzi in Rome, Italy from the Istituto Amedeo Modigliani and his assistant Dr. Laura Fedel, Mr. Eugenio Lanzetta in Lugano, Italy and his partner Maria Stellina. Marescalchi. Mz. Maria Marescalchi is involved in a legal process to access an archive of Modigliani documents. When this access is granted, we will be researching them for any additional information that may apply to the subject painting of this report.

We have reviewed the detailed scan and data from the three testing services (ARSMensuare-2011, Art-Test 2014, and InsightART- 2022). They are thorough and conclusive technical reviews of this painting as proof of being a Modigliani. All full testing reports are available along with a 20-minute technical discussion by Jiri Lauterkranc of InsightART on the testing results of the painting and the 1946 restoration work by Professor Bohuslav Slansky.

In addition to the above, we have endeavored to show that 76 years of five governmental changes (1918 – 1989) in what is now the Czech Republic have illustrated that an aristocratic family like the original owners (Klement family) had good reasons to keep this painting sequestered for as long as they did, before being able to sell it.

The notarized stated facts about the provenance of the painting (included in the attached exhibits) support the efforts of the family to protect the painting from confiscation. We have gone to considerable effort to investigate every avenue of information that would support the provenance and ownership of this painting. This includes historical records and information on BRNO, court documents about Wills and opinion filings, copies of initial reviews by “experts”, restoration techniques by Professor Slansky, style changes by Modigliani, information about the purported model of this painting (Kiki de Montparnasse), errors in inaccurate opinions and facts, etc. In some cases, we have expressed our qualified projected reasons why actions were taken about this painting and its uses.



Long-form Provenance

Newly Discovered Information & Publication Materials



The model for Pacific Arts Collections Modigliani painting is certainly Alice Ernestine Prin known as “Kiki de Montparnasse”. Newly revealed and discovered information supports what we have already known and documented, but in more detail and with new references. A first-class researcher, best-selling author and biographer, Mark Braude released a 300-page book in July of this year (2022) that thoroughly, exuberantly, and entreatingly sets out to rediscover the underestimated model, performer, painter, actress, and influencer known as “Kiki de Montparnasse” in 1929 crowned Kiki, “Queen of Montparnasse”. Included you will find excerpts from Braude’s book (Kiki Man Ray) and many admirable reviews from the New York Times, Wall Street Journal to the Age of Light.



The Wall Street Journal July 28, 2022, article supporting and explaining the book in a half-page editorial is included. Examples are also included of different renditions of Kiki’s posing for Foujita, Kisling, and Sotheby’s in illustrations. Another example is a page from the Catalog Raisonné of Moise Kisling done in 1919 and authenticated. These examples in many ways show the physicality that Modigliani has painted in his rendition. As explained in the Contemporaries Discussions in this report, Modigliani was able to paint subjects as he saw them feeling about themselves. Kiki in the many renditions shown was endowed and a “substantial” woman given to posing such that it would benefit her presentation in several ways. She was described as having an “audacious” profile and the body of a Venus De Milo torso only “fleshier”. From the many photos and paintings this is true and especially as a rendition for the subject painting of in his report by Modigliani, as he saw her.

As stated, the excerpts, some paintings, and drawings of her, including her own were “lost to history”. We will provide additional materials to incorporate the life of Kiki and the newly discovered and documented information into this report. But it is not a question about Alice Prin or “Kiki de Montparnasse” being the model for this Modigliani painting. There are other reference materials in the affidavits and the style discussions in this report. It now seems as though this report and this painting is as much about the model “Kiki de Montparnasse” as it is about Modigliani painting it. Both issues have been proven to be so.

Pacific Arts Collection

Confidential

November 6, 2024

Excerpts from Pacific Arts Collection Research & Analysis Report and Tate Papers Regarding Canvas Sizes used by Modigliani & Proof in Painting Index at Smithsonian Institute in Washington DC

1. **Smithsonian Institute Results:** The information in this section of Pacific Arts Collection Report is related to the Smithsonian Institution. The issues to be understood are:

- a. Our painting is not in the Smithsonian Institute Index catalog.
- b. There is a Modigliani painting in the Smithsonian that has the same dimensions as our painting of 40cmx33cm. This along with the Tate confirmed that Modigliani used standard canvases of three sizes during the 1916-1919 painting of nudes and other portraits. These sizes were known as Portrait- 41cmx33cm, Paysage- 41cmx27cm, Marine -#30,40,50 (92x60cm,116x73cm, 100x65cm) which have been confirmed by our research work and the Tate Papers. Our painting measures 40.5cm.x33cm, dimensions. These canvases were purchased by his dealer Zborowski from the same supplier and cut from the same bolt of canvas. He would “fit” the subject within the canvas sizes. One size was a rectangle of 40x33cm. I’ve explained this several times in the research report. This “other” painting is in the Archives of American Art – Modigliani – circa 1920-1962 – bulk circa 1950’s number 293/1916-Paris along with a host of other Modigliani paintings including a painting of Zborowski on the same size canvas (#230- 41x33cm-1918). Modigliani would also “tack” the canvas to his studio wall and paint it there. Our painting shows in three forensic reports the tack holes in the corners of the canvas and comments about them. The measurements of the canvas are to be from edge to edge even if the canvas is folded over a stretch frame or other frame.
- c. There is a drawing done by Modigliani in the same bin category as the painting index sheet described in #2 above. That image if noticed, is similar in many ways to our painting (shoulders, waist, thighs, arms, breasts, head tilt, and girth).
- d. There is another entry in the same category of a letter from Arthur Pfanstiel describing another Modigliani painting. An image of that is also in the research report along with an English translation of the French description of the painting.

2. **Canvas Testing:** Modigliani’s canvas was usually cut to four standard sizes (square, rectangles, long-marine) and he would paint vertically and horizontally with the rectangles and the long marine canvases. This painting was put into the 40x33cm rectangle and turned vertically. It had to be either a partial body, a portrait, or a complete full-body painting. Modigliani could not afford to use the full body vision he saw and used positioning and style from his earlier nude long-neck style or an abstract face for sensuality. He must have decided to paint illustration outlines of Caryatids (Exhibit-12) and drawing styles. Possibly it was an experiment of style change or maybe he did not feel any sensuality as he did with the other models (Simone, Beatrice, Jeanne, Lunia, etc.). That may very well be why it was not exhibited much with other nudes.

The thread counts of the subject painting were microscopically reviewed and compared to the illustrations and details shown in the Tate Report. The matching was 100%.

3. **Other Canvas Paintings:** In this respect and others, Modigliani’s nudes are in line with the rest of his production from 1916–19. He used a narrow range of standard canvas sizes and formats. Of the forty nude paintings listed in Ceroni’s publication of 1970, marine format canvases are most prevalent. Ten were painted on no.30 marine and nine on no.40 marine canvases. In general, Modigliani preferred marine canvases used in a horizontal orientation for his reclining nudes, while he would use them in a vertical orientation for seated portraits. An exception in this group is Seated Nude with a Shirt, which was painted on a no.3 opay sage base canvas, {21}. Whether the size of the works was dictated by Modigliani’s decision to use standard sizes of strainers or stretchers or by the image he wished to paint remains unclear.

The artist's choice of canvas weight varied in the late 1910s. For example, the canvas of the Antwerp Seated Nude is more coarsely woven than those of the MoMA Reclining Nude and Reclining Nude from the Back. All of the nudes examined are painted on plain-weave canvas, which appears to have been the artist's exclusive choice of support after 1916.

Modigliani also often painted with his pre-stretched canvas on an easel, which is evidenced by voids of paint in the lower front edge where the lip of the easel shielded the canvas from the paint (see, for instance, the MoMA Reclining Nude). However, some evidence may point to the absence of an easel, suggesting he may occasionally have worked on a canvas tacked to a solid support, {18} Red paint drips that continue onto the bottom tacking edge of Seated Nude with a Shirt may suggest that the painting was first painted un-stretched. MoMA's Reclining Nude also shows drips along the bottom tacking edge, but it was painted on an easel (fig.13). Modigliani made consistent use of commercially prepared canvases. In this respect, Modigliani's nudes are in line with the rest of his production from 1916–19. He used a narrow range of standard canvas sizes and formats. Whether the size of the works was dictated by Modigliani's decision to use standard sizes of strainers or stretchers or by the image he wished to paint remains unclear.

Note 1: Our Research Materials contained in Addendum E [431 pages] includes the Tate Papers referred to above. The file included here; the Tate Papers begin on page 16.

Original Painting - Alice Ernestine Prin at age 16. Amedeo Modigliani of course did not know that the subject of his painting would, at age 28 be officially crowned **Kiki**, "**Queen of Montparnasse**"



Artist Rendition - below depicts how Modigliani's painting will appear after cleaning and minor restoration. The painting, oil on canvas, below was created using the same color palate as Modigliani



*Location of Modigliani Paintings - Private Collection & Gallery
Evidence of Various Canvas Sizes used by Modigliani*



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September 1, 2022

Hello Yiri – I hope this finds you well and fully skied out for at least a month! *and uninjured!*

I will be back in Prague from January 29 until February 5 (or longer if necessary). I want to work this month on the authentication and the provenance for the painting. My goal since I saw the initial testing data and the provenance was to seriously investigate this painting. It looked and felt like a real painting that Modigliani painted as a one-off statement. Almost all of his official 22 nudes seem to have been done from 1916 through 1919. His style seemed to vary from the Reclining Nude with Blue Cushion inspired by Giorgione's Sleeping Venus to his Reclining Nude inspired by Goya's La Maja Desnuda and to his Girl in White Chemise where he shows facial, shoulder, arm, torso, and neck style changes.

The attached examples show the way Modigliani could change styles based on what he saw and how he thought about the models. In easier nudes like #1 attached he wanted (according to curators more qualified than me) to reconcile his colors of the composition and the physical type with his lover Beatrice Hastings (1916). But then later (1917) he struck the style of #2 where he made a substantial difference. Rather than the elegance and sophistication Modigliani used in #1 from the influence of Beatrice, number 2 by contrast is a plain looking, plump, dumpy body of a Courbet type to improve on the facts of nature. Modigliani still uses the firm, warm, illumination, simplified modeling. This is more of the Italian tradition of the full, ripe, human figure of his own Renaissance views.

When an observer looks at the styles Modigliani used in creating his caryatids (earlier forms of nudes) and then later in his huge number of drawings, you will find in the illustrations the lines of the shoulders, arms, torso, thighs, and legs of very similar construction. Several of the drawings attached show the similar positioning of the legs and the folded arms as they appear in this painting. Review numbers 3,4,5 to see this comparison. There are also drawings of dark long hair with bobs and curving backs and heads turned sideways. It seems Modigliani favored his nude model's heads turned to the left or right or tilted slightly off a direct gaze. Even his drawing show this tendency or style.

Modigliani was obsessed with the human body. His friend Lipchitz once explained "He could never forget his interest in people, and he painted them, so to say, with abandon, urged on by the intensity of his feeling and vision" As the writer Jean Cocteau wrote "He reduced us all to his type, to the vision within, and he usually preferred to paint faces conforming to the physiognomy he required." For Modigliani's portraits, even his self-portraits, are not the reflection of his external observation, but of his internal vision. When studying the life of Alice Prin (Kiki Montparnasse) it seems he painted her as described by other observers as being "fleshy and chubby" at 17-19 years of age. Later renditions of her by Moise Kisling in the 1920's after the death of Modigliani and her book titled "Memoirs of Kiki Montparnasse" show her own transitions.

Modigliani was partial to sharp angles in the backgrounds through positioning of the figure. Upon detailed review, a Modigliani painting may reveal a chair, or table and a wall that is divided. Those appear in this painting. Modigliani would show wainscoting, rather than a draping sheet or elongated cushion as other models used, this model is sitting on a large, tasseled pillow. In an archived photograph that appears in many catalogs is a scene where friends of Modigliani are moving his possessions. One of the friends in the photo is Dr. Pau Alexandre. In the photo is a pillow very similar to the one painted in this painting including the fringe tassels and two of Modigliani's paintings strewn on the ground.

The skin tones of this painting are of a luminous quality likened by Modigliani and show transitions into rose tones at different parts of the body. The hair is a thick dark black with a bob in the back as shown in an attached illustration and as reported as part of Kiki's hair style before being changed later to the Mikado style by Man Ray. The shoulders and arms are styled as those of Kiki's and the legs are positioned similar to several leg positions in the attached drawings by Modigliani.

Rather than painting an intimate sexual force that tantalizes the viewer with coy attempts at shielding nudity, this painting seems to create a different form of sensuality. Emily Braun has written about the appeal of Modigliani's nudes and explains why that are so irresistible. "*The most startling aspect of a Modigliani nude that make it immediately identifiable is the way in which the female body is literally in your face*". In this painting, Modigliani seems to harken back to painting a young person from a humble background as were servants, workers, or peasants.

As with many of Modigliani's paintings, brushstrokes are readily apparent in this painting and some parts of this painting are shown in detail in the earlier test reports. Modigliani seemed to make a dynamic and busy surface. He did not seem to make paintings from the slick, sterile canvasses of the academic painters who preceded him. In reviewing the paintings Moise Kisling made of Kiki and other subjects, one can see the sterile differences.

The attached catalog *Sitting Nude (Plate 27)* from the Douglas Hall catalog is clearly more of a caricature of a Sitting Nude compared to our painting which to me is more of a real vision of what Modigliani was looking at in the model. The details of this painting look more real than the other plate. I hope this helps with your analysis. There is a lot more opinions and thoughts available about the difference this painting has over other nudes. It does seem to be "in your face" but in a different way than say the *Reclining Nude with Blue Cushion*! As you have seen, I have a lot more information about the authenticity.

Now, back to your scan data. I think the points we should be looking for from your scan and the previous scan data are:

1. Confirmation by your scanning techniques unequivocally about the pigments used. We already have the charts from earlier scans and the Art-Test is a large chart.
2. Images of the brush strokes similar to the ARSMensuare tests only on significantly more data points, especially the face.
3. An evaluation of the technique and/or materials used in the restoration work by Bohuslav Slansky. I think the other minor restoration work done by Bohuslav Smejkal was on the bottom of the painting. But, I am not sure. We are working with his son to see if there are any records he may have kept. I also will pursue articles written by Slansky that may comment on work he did in 1946 on this painting.
4. There are reportedly four holes in the canvas on all four corners (Art-Test report) that are not oxidized over and are not painted over. This was a mounting technique used by Modigliani when he was doing a painting. These are a form of signature by Modigliani – if they exist, it is his. If there are none, it is suspect.
5. I am hoping the degree of your scan penetrations and resolutions will show that there is dark either paint or charcoal outlines on some parts of the painting. One of the past reports' comments on a line on the left side of the model. I think there is another on the right side and maybe near or in the leg/thigh area. I don't know, but high resolution may show this as it was a technique of Modigliani's.
6. Although the face is tilted to the models left and down, it is rounded to the chin like some illustrations of Kiki. Eyebrows, lips, and eye lashes are relatively close.
7. The curvature of the shoulders and the arms with a clasped hand under the leg is similar styles to several drawings attached.
8. The listing of the sample data points will be helpful to the uninitiated.
9. The back side of the canvas needs to be scanned and hopefully the different stamps read and recorded. Some are just not that readable. We are looking for any references to stamps and notices from exhibitions or galleries for the same.
10. I want to check with the Thread Count Project at Rice University and see if they can use any of your data to confirm the canvas with two Modigliani canvas scans that they already have.
11. I appreciate your acknowledgment that this is a Modigliani painting and hopefully the amount of data you have will reinforce that opinion strongly.

I also want to be sure to get a good quote of costs and time to do restoration on this painting including cleaning. I think more of the colors used by Modigliani will come through much better and be preserved longer if the painting can be cleaned, and some restoration work done. I have faced an uphill battle since I started on this project, but at each major step it keeps coming up as a "discovery" or "lost" project. I look forward to your help in completing the project and having the painting sold.

Best Regards,

William Chamberlain